

Undisputed electricity arrears relegated to Clause 6.14 instalment representation

Allahabad High Court · Division Bench · 28 January 2021 · WRIT-C No. 2363 of 2021 · WRIT-C No. 2363 of 2021 · **Writ disposed; petitioner directed to apply under Clause 6.14; coercive recovery stayed for six weeks or till decision.**

HEADNOTE

Where a consumer does not dispute electricity arrears and is ready to pay, a writ seeking to quash a recovery notice may be disposed of without entering the merits, directing a fresh representation under Clause 6.14 of the U.P. Electricity Supply Code, 2005 for instalment facility, to be decided by a reasoned speaking order after hearing, with a short interdict on coercive recovery.

FACTUAL SUMMARY

Uday Pal Singh filed a writ in the Allahabad High Court seeking certiorari to quash a 20 December 2017 recovery notice issued by the Executive Engineer (Pravartan Dal), Electricity Distribution Khand Bisauli (Budaun), Uttar Pradesh Power Corporation Limited, demanding Rs. 46,109, and a mandamus restraining coercive recovery. Counsel for the distribution company submitted that the petitioner was not disputing the electricity bills and was ready to pay, and therefore could seek instalment facility under Clause 6.14 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility on undisputed arrears

HOLDING

Without entering the merits of a writ challenging a recovery notice for electricity arrears, where the consumer does not dispute the demand and is ready to pay, the Court may dispose of the petition by directing a fresh Clause 6.14 representation within a short time, requiring the licensee to decide it by a reasoned speaking order after hearing, and staying coercive recovery for a limited period or until that decision, whichever is earlier. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 Petitioner not disputing the Rs. 46,109 demand and ready to pay; relegated to a Clause 6.14 representation before the licensee, with interim protection from coercive recovery pending a reasoned decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 20.12.2017 RECOVERY NOTICE AND THE UNDERLYING DEMAND OF RS. 46,109

Court expressly declined to enter into the merits. ¶ 1